

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 1954(F)

TAYLORS RESOURCES, INC. (USA) d/b/a BRIDGEWATER LANDING, INC. (USA)

COMPLAINANT

v.

mitsui o.s.k. lines, ltd.

RESPONDENT

**RESPONDENT MITSUI O.S.K. LINES, LTD.'S REPLY TO COMPLAINANT'S
REQUEST TO VACATE THE INITIAL DECISION**

Respondent, Mitsui O.S.K. Lines, Ltd. ("MOL"), acting in the United States by and through its general agent, MOL (America) Inc., respectfully requests the Commission to deny the request of Respondent, Taylors Resources, Inc. (USA) d/b/a Bridgewater Landing, Inc. (USA), to vacate the Initial Decision.

The request fails to conform to the requirements of 46 CFR §502.227(a)(1) in that, first, it does not constitute "a memorandum excepting to any conclusions, findings, or statements contained in such decision, and a brief in support of such memorandum" and, secondly, it does not "indicate with particularity alleged errors." In addition, the request fails to follow the requirements of 46 CFR §502.318(a) in that it fails to allege that "a material finding of fact or a necessary legal conclusion is erroneous or that prejudicial error has occurred." As a result, the

request does not rise to the level of exceptions required to challenge the Initial Decision in accordance with the Rules of Practice and Procedure.

Complainant appears to allege that Respondent violated section 41102(a) of the Shipping Act by means of “false billing” as a ground for appeal. However, this claim was already addressed by the Administrative Law Judge (“ALJ”):

Section 41102(a) provides that “a person may not knowingly and willfully and willfully [sic], directly or indirectly, by means of a false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.” 46 C.F.R. § 41102(a). Bridgewater does not allege or set forth evidence that Mitsui obtained ocean transportation from any carrier, much less obtained the transportation at less than the rates or charges applicable. Bridgewater has not proved that Mitsui violated section 41102(a) and this claim is dismissed.

Initial Decision, page 27.

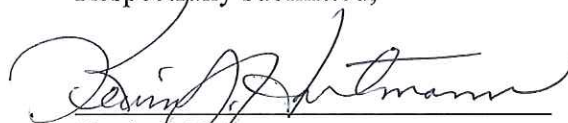
Bridgewater further alleges Respondent falsely billed Complainant for detention charges by not providing a copy of the tariff for those charges. The ALJ also addressed this claim:

Mitsui provided its service to Bridgewater pursuant to the service contract between the parties. The service contract provides: “Free Time at destination, shall be 14 calendar days. In the event the free time set forth expires, detention charges shall apply per the governing tariff.” (MOL 022.) The “governing tariff” is in the record at MOL 023-025. Bridgewater has not proved that Mitsui violated section 41104(2)(A) and this claim is dismissed.

Initial Decision, page 30.

Nowhere does Respondent describe with particularity (or otherwise) how such conclusions of the ALJ might have been erroneous. Because Complainant asserts no error of fact or law, Respondent respectfully requests that the request to vacate be denied.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Kevin J. Hartmann", written over a horizontal line.

Kevin J. Hartmann
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*Attorneys for Respondent
Mitsui O.S.K. Lines, Ltd.*

Dated: Woodbridge, New Jersey
September 6, 2017

Certificate of Service

I hereby certify that I have this 6th day of September, 2017, served a copy of the foregoing Reply upon the following by e-mail, and copies by courier shall follow:

Secretary
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I further certify that the electronic copy of the Reply served by e-mail is a true and correct copy of the paper original, and that the signed paper original and five (5) copies are being forwarded to the Secretary of the Commission via courier.



Hae Woen Grace Bae